National Survey of Mortgage Originations (NSMO) Public Use File Dataset

1 National Mortgage Database Project Notice of Monitoring

2 National Mortgage Database Project Terms of Service

3 National Survey of Mortgage Originations (NSMO) Public Use File

Terms of Service for Access to the National Mortgage Database Project (hereinafter "Agreement")

Scope

All of the content and data related to the National Mortgage Database Project (NMDB® Project) (the NMDB Project is comprised of three components: (1) The National Mortgage Database ("NMDB"); (2) the information used to create the NMDB but not contained within the NMDB; and (3) National Survey of Mortgage Originations and American Survey of Mortgage Borrowers ("Surveys") and is hereinafter referred to as "NMDB Project data" or "data") (made available to you (hereinafter referred to either "you" or "user") through FHFA's website (https://www.fhfa.gov/ (FHFA.gov)) is subject to the following terms and conditions:

BY CLICKING ON THE "I AGREE" BUTTON OR OTHER SIMILAR EXECUTION FUNCTIONALITY, BY OTHERWISE ASSENTING TO THIS AGREEMENT, OR BY ACCESSING OR USING ANY PORTION OF THE NMDB PROJECT DATA, YOU AGREE TO BE BOUND BY THESE TERMS AND CONDITIONS. IF YOU DO NOT AGREE TO THESE TERMS AND CONDITIONS OR DO NOT HAVE THE AUTHORITY TO ENTER INTO THIS AGREEMENT, YOU MAY NOT ACCESS NOR USE THE CONTENTS OR NMDB PROJECT DATA. ACCESS TO OR USE OF FHFA'S NMDB PROJECT DATA OR ITS CONTENT CONSTITUTES ACCEPTANCE OF THE TERMS AND CONDITIONS OF THIS AGREEMENT.

Restrictions on Use

Absolute Prohibition Against Correlation of NMDB Project data to Individuals. Under no circumstance shall you, directly or indirectly, use, copy, modify, decompile, disassemble, scrape, cache, frame, mask, correlate, or apply any process to the NMDB Project data in order to misappropriate any information about the NMDB Project data or derive any information about or identify any particular individual, including but not limited to violation of applicable privacy laws or regulations and/or in any way that would be deemed an unlawful invasion of privacy, whether or not for personal, public, or private use of the results of such correlation. You shall comply with all federal, state and local laws, and regulations governing the access, handling, and use of the NMDB Project data by you.

You may not use FHFA's or the NMDB Project's name, logo, or trademarks in any advertising, publicity, or any other commercial manner without the express written consent of FHFA.

You shall not remove, alter, cover, or distort any copyright, trademark, or other proprietary rights notice placed by FHFA in or on the NMDB Project data, and will ensure that all such notices are reproduced on all copies of the NMDB Project data made by you; provided, however, that you will not be required to attach a copyright notice to any individual element or factor or other data that you may reproduce. You shall ensure that either a copy of this Agreement is transmitted to or incorporated into any agreement with any recipient of the NMDB Project data should you repackage, sell, modify, or distribute NMDB Project data.

Citing Data

Once NMDB Project data has been downloaded, FHFA does not attest to nor vouch for the quality, accuracy, or timeliness of the data, or any use or analyses conducted therefrom with the data.

When citing to the NMDB Project data, users must clearly state that "The opinions and analyses contained herein are solely of the users/authors of any data analyses or papers, and the FHFA cannot and does not attest to nor vouch for the quality, accuracy, or timeliness of the data, or analyses derived from these data after the data has been retrieved from FHFA.gov." In citing to or using NMDB Project data, FHFA's and the NMDB Project's logo may not be used by persons who are not FHFA employees or on products (including web pages) that are not FHFA-sponsored without the express written consent of FHFA.

Modification or False Representation of Content

Users **may not** modify or falsely represent NMDB Project data accessed through FHFA.gov and still cite the source as FHFA.

Right to Limit

Use of the NMDB Project data is subject to certain limitations or restrictions on access or use as set forth within this Agreement or otherwise provided by FHFA from time to time. If FHFA reasonably believes that a user has attempted to exceed or circumvent these limits or restrictions, that user's access to the NMDB Project data, at the sole discretion of FHFA, may be permanently or temporarily blocked.

Service Termination

If a user wishes to terminate this Agreement as it applies prospectively, he or she may do so by refraining from further use of the NMDB Project data. FHFA reserves the right (though not the obligation) to: (1) refuse to provide access to the NMDB Project data to a user, if FHFA determines, in FHFA's sole discretion, that such use violates this Agreement, federal or state law, or any FHFA policy; or (2) terminate or deny a user's access to and use of all or part of the NMDB Project data at any time for any other reason in its sole discretion. All provisions of this Agreement shall survive termination with respect to data already accessed, including, without limitation, warranty disclaimers, indemnity, and limitations of liability.

Changes

FHFA reserves the right, at its sole discretion, to modify or replace this Agreement, in whole or in part. Continued use of or access to the NMDB Project data following posting of any changes to this Agreement constitutes acceptance of those modified terms. FHFA may, in the future, offer new services and/or features. Such new features and/or services shall be subject to the terms and conditions of this Agreement or any modifications thereof.

Disclaimers

General Disclaimer: FHFA takes reasonable measures to ensure the quality of the data and other information produced by FHFA in connection with the NMDB Project. For more information on FHFA's Information Quality Guidelines, click here. However, FHFA makes no warranty, express or implied, nor assumes any responsibility for the accuracy, correctness, or completeness of any information that is available through the NMDB Project data, nor represents that its authorized (as set forth herein) use would not infringe upon or misappropriate privately-owned rights or the intellectual property rights of any third party. FHFA.gov services are provided "as is" and on an "as available" basis. FHFA hereby disclaims all warranties of any kind, express or implied, including without limitation, the warranties of merchantability, fitness for a particular purpose, and non-infringement. FHFA makes no warranty that the NMDB Project data will be error free or that access thereto will be continuous or uninterrupted.

Non-Endorsement: Reference to any specific commercial product, process, or service by trade name, trademark, manufacturer, or otherwise, does not constitute an endorsement, a recommendation, or a favoring by the U.S. Government or FHFA.

Disclaimer Regarding Non-FHFA Information: For convenience and informational purposes only, FHFA provides links to other or non-governmental websites. These websites may contain information that is copyrighted with restrictions on reuse. Permission to use copyrighted materials or information must be obtained from the original source and **may not** be obtained from FHFA. FHFA is not responsible for the content of external websites linked to or referenced from FHFA.gov. FHFA neither endorses the information, content, presentation, or accuracy, nor makes any warranty, express or implied, regarding these external websites. Users should be aware that when they select a link on FHFA.gov to an external website, they are leaving FHFA.gov.

NMDB Disclaimer: While FHFA has taken reasonable steps to verify the accuracy of the information of the NMDB Project data for FHFA's use in connection with its statutory duties, the NMDB Project data should be used by others with appropriate caution. As the user, you assume the entire risk related to your use of the NMDB Project data, including your use of any updates to the NMDB Project data. FHFA is providing the NMDB Project data "as is" and hereby disclaims any and all warranties, express or implied, including without limitation any implied warranties of merchantability, fitness for a particular purpose, and non-infringement. In no event will FHFA be liable to users or any third party for any direct, indirect, incidental, consequential, special, or exemplary damages, or lost profit related to the NMDB Project data, including the use or inability to use or access the NMDB Project data, the use of data embodied or obtained from the NMDB Project data, or the use of any documentation or other information or materials (if any) accompanying the NMDB Project data. Therefore, users should: (1) rely on the user's own inquiries as to the accuracy and relevance of the data presented in the NMDB Project data; (2) not use the NMDB Project data, including the output, as the basis for making any decision or embarking on any course of action; and (3) be aware that the data contained in the NMDB and the output of the NMDB Project data should not be regarded as representative of any current data or forecasts of what will happen or what has occurred under a given set of conditions. Users **may not** use or modify the NMDB Project data and then present the result as official FHFA or U.S. Government material, opinion, or policy.

Disclaimer of Liability

In no event will FHFA be liable with respect to any subject matter of this Agreement, including but not limited to the downloading of NMDB Project data or materials. This disclaimer of liability includes any liability asserted under any contract, negligence, strict liability, or other legal or equitable theory for: (1) any special, incidental, or consequential damages; (2) the cost of procurement of substitute products or services; or (3) interruption of use, loss, or corruption of the NMDB Project data.

General Representations

The user hereby warrants that: (1) the use of the data will be in strict accordance with this Agreement, FHFA.gov's Privacy Policy, and all applicable laws and regulations; and (2) the data will not be used in any manner that infringes upon or misappropriates (i) the intellectual property rights of any third party or (ii) any privately-owned rights.

Indemnification

The user agrees to indemnify and hold harmless the U.S. Government, FHFA, its Director, employees, contractors, agents, and the like from and against any and all claims and causes of action, and related injuries, damages, liabilities, judgments, and settlements (including costs and reasonable attorneys' fees), arising out of or related to the downloading, receipt, use, sale, or distribution of NMDB data, including without limitation, the accuracy of the NMDB Project data and violations of this Agreement. This Indemnification clause shall not apply to Federal government users.

Miscellaneous

This Agreement constitutes the entire Agreement between FHFA and the user concerning the subject matter hereof, and may not be modified by the user. This Agreement may only be modified by the posting of a revised version on this webpage by FHFA.

Headings

The titles and headings of the various sections and paragraphs in this Agreement are intended solely for convenience of reference and will not be given any effect in the construction or interpretation of this Agreement.

Severability

If any provision of this Agreement is held invalid by a court of competent jurisdiction, such provision will be deemed to be restated to reflect as nearly as possible the original intentions of the parties in accordance with applicable law, and the remainder of this Agreement will remain in full force and effect.

Governing Law

This Agreement shall be governed by and construed by federal law. The user is solely responsible for compliance with privacy-related federal, state and local laws, and regulations governing the access, handling, and use of the NMDB data by user.

No Waiver of Rights

FHFA's failure to exercise or enforce any right or provision of this Agreement shall not constitute waiver of such right or provision. Any waiver by either party of a breach of any provision of this Agreement must be in writing. No waiver will be effective unless in writing, is signed by an authorized representative of the party against which enforcement of the waiver is sought. Neither the failure of either party to exercise any right of termination, nor the waiver of any default will constitute a waiver of the rights granted in this Agreement with respect to any subsequent or other default.

I hereby acknowledge that I have read and understand the terms and conditions of this Agreement for access to NMDB Project data and its contents thereof.

By clicking "I agree" below, I accept the terms and conditions of this Agreement described above.

Previous I agree